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Pol. Science
L. no = 4

Date ___/___/___ Working of the Institutions



• An Institution is an organised group of experts and Professionals which performs specific or particular function.

⇒ Pol. Institution - An Institution which performs Political functions.

e.g. Parliament, PMO, Council of Ministers, etc.

⇒ How a Major Policy Decision is Taken?

1) In 1979 → The J.P (Janta Party) govt. of India under Chaudhary Charan Singh as PM and Neelam Sanjina Reddy as the President of India appointed a Commission for seeking suggestions for the Educational and economic development.



of OBC.

- 2) This com. was headed by Bhimeswar Prasad Mandal. (B.P. Mandal), who was the former CM of Bihar and an MP - hence this com. was called Mandal Commission.
- 3) This com. gave or submitted its report in Dec. 1980 and suggested 27% reservation in Central Govt. job for OBC.
- 4) On 6th. Aug. 1990 - The Union Govt. decided to implement this com. and also made an announcement in the Indian Parliament.
P.M. - was - V.P. Singh.
President - Ramaswamy Venkatraman.
- 5) Mandal. com. report became a one page order under the ~~name~~ name, OM. No. 36012/31/90-Est (SCT).
Office Memorandum.



6) ~~This~~ This O.M. was challenged in the supreme Court of India. by a female lawyer Indira Sawhney and others and is called as Mandal Case in 1992.

7) Indian Parliament later in 1993 - justified it as: ~~(a) creamy~~

a) Creamy layer of the OBC be excluded from this benefit.

b) Annual income for this benefit not to exceed ₹8 lakh. This com. was finally implemented in 1993.

⇒ Functions of Political Institutions:-

1) Make Laws.

2) Implement or Execute laws.



- 3) Provide basic amenities to the people.
- 4) Govern the Country.
- 5) Provide Public Services.
- 6) It represents the People.
- 7) Protects the rights of the citizens.
- 8) Amend the existing laws.
- 9) Give opportunity to the weaker sections to raise their voice.
- 10) To make quality decisions.

⇒ Functions of Parliament:-

→ Indian Parliament is provided from the

Article 79 - 122 of the Indian Constitution.

- Parliament is the ^{Highest} National decision making



institution.

- It is called as Sansad in Hindi.
- 1) Making of Laws.
- 2) It ~~amends~~ amends the existing laws and deletes the unnecessary laws.
- 3) It controls those who execute the laws.
i.e; The council of Ministers.
- 4) It is the custodian of national Fund or Finance. i.e; No Tax can be imposed nor any fund withdrawn without the approval of Indian Parliament.
- 5) It is the highest form where the voices of the people are heard.



- 6) It elects the President and Vice-President of India.
- 7) It constitutes the committee to settle or
or investigate.
solve the issues of national importance.
- 8) Parliament impeaches the President of India,
Supreme Court ~~of~~ and High Court Judges etc.
- 9) It approves, the union budget.
and discusses.
- 10) Parliament can change the name of a state.
e.g. Calcutta → Kolkata, Odisha → Orissa
Kerala → keral.
- 11) It can create a new state from already
existing big state. e.g. Uttarakhand from U.P.
Telangana → Andhra Pradesh.
Jharkhand → Bihar.
Ladakh → J&K.

12) Parliament can merge or combine small states into a single state.

⇒ Composition of the Parliament:

1) Parliament is composed of two Houses namely Lok Sabha and Rajya Sabha.

2) Parliament of India is bi-cameral in nature.

1) ⇒ Lok Sabha:

1) Lok - People and Sabha → Assembly or House
i.e; It is the House of People.

2) Lok Sabha consists of 543 - 552 M.P.s. and at present there are 543 MPs in L.Sabha.

3) L.S is elected directly by the People.



- 4) It is elected for a period of 5 years.
- 5) It is called Lower House of the Parliament.
- 6) L.S is headed by Prime Minister i.e; PM.
- 7) It meets twice a year.
- 8) The business or the sessions of the L.S are presided over by the speaker who is elected by the L.S MPs.
- 9) L.S consists of 84 MPs from Scheduled Castes (SC) and 47 MPs from scheduled Tribes (ST).
- 10) The minimum no. of MPs required for a session in L.S is called Quorum. It is $\frac{1}{10^{\text{th}}}$ of total strength of L.S i.e; $\frac{1}{10} \times 543 = 55$ MPs.



2) $\Rightarrow$ Rajya Sabha:

1) Rajya + Sabha



State + Council $\rightarrow$ R.S is the Council of states.

2) Its total strength is $238 + 12 = 250$.

3) 238 Members of R.S are elected by the MLA's of the states. i.e; They are elected indirectly.

4) 12 MP's of R.S are nominated by the President of India from the eminent fields of Science, Literature, Academics, Sports, Theatre and Cinema etc.

5) R.S is elected for a period of 6 yrs.

6) R.S is called as Upper House of the parliament.

7) R.S does not dissolve at once.



8) One third of R.S ($\frac{1}{3}$ of 250) retires after every 2 yrs.

9) R.S is presided over by chairman who is usually vice President of India.

⇒ Executive :- 1) Branch of the Govt. that implements the policies and laws of the Assembly or Parliament.

2) It comprises of President of India, Ministers and all bureaucrats.

1) Temporary Executive :- Includes Ministers, who can or can not be elected after 5 yrs.

• Also c/a, Political executive.

2) Permanent Executive :- Commissioners, Secretaries.



Directors, collector who retire only on their relevant age.

⇒ Council of Ministers:

- 1) Group of the Ministers at the state or Union level.
 - 2) Appointed by the PM or CM at the union and state level.
 - 3) The strength of COM should not exceed 15% of the total strength of L.S i.e; $15\% \text{ of } 543 = 81.45$.
 - 4) PM is the head of the COM.
 - 5) Most of the decisions are taken by COM.
 - 6) The group of the key ministers. e.g Defence Min, Finance Min, External Affairs, etc.
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- a) Cabinet Minister. (b) Minister of states.
 - c) Minister of state with independent charges.

⇒ Prime Ministers:

- 1) Generally belongs to the Ruling Party.
- 2) Nominated by his or her Pol. Party.
- 3) Appointed and sworn in by the President.
- 4) Head of the Govt. and the council of Ministers.



5) His resignation means the resignation of the govt.

⇒ Functions and Powers:-

- 1) Chooses his/her cabinet and Council of Ministers.
- 2) Heads the meetings of COM and the Cabinet.
- 3) Assigns the portfolios to the ministers.
- 4) Shuffles the portfolios of the ministers and the cabinet.
- 5) Communicates his/her decisions to the President.
- 6) Directs or Ask the minister to resign if needed.
- 7) PM Advises President to declare war and emergency.
- 8) Suggests the President regarding the Parliament to meet.
- 9) Acts as a head to control National Crisis.

→ President

- 1) Elected by an electoral college, which comprises of the MPs of L.S and R.S and all the MLA's of all the states.
- 2) President is elected indirectly for a period of 5 yrs.
- 3) President should not be the member of either



house of the Parliament.

- 4) Writes resignation to the Vice-President of India.
- 5) ~~Writes~~ Sworn in by the Vice-President or Chief Justice of India.

⇒ Powers and Functions:-

- 1) Calls or prorogues (Ends) the Parliamentary session.
- 2) Appoints the PM and his team.
- 3) Appoints the CJI, Supreme Court and High Court Judges, Chief election Commissioner of India, Comptroller and Auditor Gen., Attorney General, Chairman and members of UPSC and SPSC.
- 4) Appoints Lieutenant Governor (V.P) and Governor (states).
- 5) Assents a bill to become an Act.
- 6) Addresses the 1st session of the new Govt. and 1st session of the every year of the Govt.
- 7) Appoints and receives the Ambassadors.
- 8) He can suspend a money bill.
- 9) Gives pardon to those who are given death sentences.



- i) He/she can Declare War and emergency in consultation with PM and COM.
- ii) contains a special fund called contingency fund for handling ~~uncover~~ uncover conditions

P.T.O



⇒ Judiciary:

- 1) The organ which protects our rights, settles disputes and interprets the law.
- 2) It is a hierarchical Institution.
 - Top level or National level - Supreme Court.
 - State Level → High Court.
 - District level → Subordinate or District court.
 - Village level → Nyaya Panchayat.
- 3) Independent Judiciary → Which is not influenced by any influential person.
- 4) Its topmost organ is Supreme court.

⇒ Supreme Court:

- 1) Final Interpreter.
- 2) It is headed by chief Justice of India - (CJI).



- 3) CJI is appointed by the President.
- 4) CJI is appointed for a period of 5 years.
- 5) Supreme court and High court Judges ~~return~~ retire at an age of 65 yrs.
- 6) It settles the constitutional disputes and the disputes b/w the states and central Govt.
- 7) The total strength of the supreme court is 31 including CJI i.e; 30 judges + 1 CJI
- 8) It examines the laws passed by the Parliament.
- 9) It hears the PIL and other cases.
↓
(Public Interest Litigation).